

STATE OF NEW YORK

7859--A

2025-2026 Regular Sessions

IN SENATE

May 9, 2025

Introduced by Sens. RIVERA, CLEARE -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- recommitted to the Committee on Health in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law, in relation to authority for existing assisted living programs to expand capacity by nine or fewer beds under an expedited process

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (k) of subdivision 3 of section 461-l of the
2 social services law, as added by section 2 of part B of chapter 57 of
3 the laws of 2018, is amended to read as follows:

4 (k) (i) Existing assisted living program providers may apply to the
5 department of health for approval to add up to nine additional assisted
6 living program beds that do not require major renovation or
7 construction. Eligible applicants are those that agree to dedicate such
8 beds to serve only individuals receiving medical assistance, are in good
9 standing with the department of health, and are in compliance with
10 appropriate state and local requirements as determined by the department
11 of health.

12 (ii) Existing assisted living program providers licensed on or before
13 April first, two thousand eighteen may submit applications under this
14 paragraph beginning no later than June thirtieth, two thousand eighteen
15 and until a deadline to be determined by the department of health.
16 Existing assisted living program providers licensed on or before April
17 first, two thousand twenty may submit such applications beginning no
18 later than June thirtieth, two thousand twenty and until a deadline to
19 be determined by the department of health.

20 (iii) Notwithstanding paragraph (m) of this subdivision, existing
21 assisted living program providers licensed on or before April first, two

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD01891-04-6

1 thousand twenty-five may submit applications under this paragraph begin-
2 ning no later than the one hundred eightieth day following the effective
3 date of the chapter of the laws of two thousand twenty-six that amended
4 this paragraph and until a deadline to be determined by the department
5 of health.

6 (iv) The number of additional assisted living program beds approved
7 under subparagraphs (i) and (ii) of this paragraph shall be based on the
8 total number of previously awarded beds either withdrawn by applicants
9 or denied by the department of health.

10 (v) The commissioner of health shall utilize an expedited review proc-
11 ess allowing certification of the additional beds within ninety days of
12 such department's receipt of a satisfactory application.

13 § 2. This act shall take effect immediately.